

# Arun Pratap @ Munnesh Kumar v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 3 July 2023 · 2023:AHC:130481-DB · WRIT - C No. 21052 of 2023 · **Writ disposed; Executive Engineer to consider Supply Code application**

## HEADNOTE

With the parties' consent and without any opinion on the merits, the writ seeking instalment deposit of the May and June 2023 electricity bills was disposed. If the petitioner applies within two weeks to the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Jasrana, the grievance is to be considered strictly in accordance with the U.P. Electricity Supply Code, 2005. Any available departmental surcharge-waiver benefit may also be extended.

## FACTUAL SUMMARY

The petitioner, Arun Pratap @ Munnesh Kumar, sought a mandamus permitting him to deposit two instalments of the electricity bills for May and June 2023, and directing the respondents to accept the remaining two instalments for those months at one time. Counsel for Dakshinanchal Vidyut Vitran Nigam Ltd. stated on instructions that an earlier one-time settlement had already been extended to the petitioner, who defaulted by failing to deposit the requisite instalments in time. The petitioner nonetheless wished to clear the outstanding dues.

## HOLDING-UNITS

### HOLDING-UNIT · U.P. Electricity Supply Code, 2005

consideration of outstanding-dues grievance by the Executive Engineer

#### HOLDING

No useful purpose would be served by keeping the writ pending. Without expressing any opinion on the merits, and with the consent of the parties, the petition is disposed with the observation that if the petitioner moves an appropriate application within two weeks before the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Jasrana, District Firozabad, for redressal of his grievance under the U.P. Electricity Supply Code, 2005, the Executive Engineer shall consider it strictly in accordance with law. If any surcharge-waiver scheme is available in the department, that benefit may also be extended to the petitioner. ¶ 4-6

**FLAG** The order invokes the U.P. Electricity Supply Code, 2005 but states no clause number.

## PRINCIPLE TAGS

**consider-grievance-under-supply-code** After recording that an earlier one-time settlement had been defaulted, the Division Bench did not decide the claim to deposit the May and June 2023 bills in instalments, and instead left an application to the Executive Engineer to be considered strictly under the Supply Code, with any available surcharge waiver also open. ¶ 3-6

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO DEPOSIT THE MAY AND JUNE 2023 ELECTRICITY BILLS IN THE INSTALMENTS SOUGHT, INCLUDING THE EFFECT OF THE ALLEGED ONE-TIME-SETTLEMENT DEFAULT.**

The Court expressed no opinion on the merits and left the grievance to the Executive Engineer. ¶ 5

**NOT DECIDED — WHETHER A SURCHARGE-WAIVER SCHEME IS AVAILABLE AND MUST BE EXTENDED TO THE PETITIONER.**

The order only observes that if such a scheme is available, the benefit may be extended. ¶ 6

